

20STCV35418 20STCV35418

County: los-angeles

Division: Civil Law and Motion

Department: 732

Hearing date: 2026-07-08

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Case Number: 20STCV35418 Hearing Date: July 8, 2026 Dept: 732

Lakesha R. Carter v. City of Los Angeles, et al.

Wednesday, July 8, 2026

CASE NUMBER: 20STCV35418

Consolidated Case

No.: 20STCV45349

OPPOSED

Defendants City of

Los Angeles and Carlos Carias' Motion to Bifurcate Trial

Facts: This is an action for false arrest and excessive force. The First Amended Complaint (FAC) alleges as follows. Plaintiff Lakesha R. Carter (Plaintiff) was arrested and imprisoned at gunpoint without probable cause on August 7, 2019. (FAC ¶¶ 13–15.) The arrest was based on a warrant obtained by Defendant Officer Carlos Carias (Carias), who used false information to obtain it. (FAC ¶ 10.) The next day, after being taken to jail, the judge overseeing Plaintiff's arraignment dismissed the case against Plaintiff for lack of evidence, and the District Attorney dismissed the charges that day. (FAC ¶¶ 22–23.)

Procedural History: Plaintiff filed the original Complaint

on September 16, 2020, alleging four causes of action:

1.

False Arrest

2.

Excessive Force

3.

Violation of Constitutional Rights

4.

Intentional Infliction of Emotional Distress

This matter was removed to
federal court on November 16, 2020.

This matter was remanded back
to this court on November 9, 2021.

Plaintiff filed the FAC on
December 2, 2021, alleging the same causes of action.

On February 15, 2022, this
court sustained Defendants' demurrer to the first cause of action and granted
their motion to strike the second and third cause of action, overruling the
demurrer to the fourth cause of action for intentional infliction of emotional
distress.

On February 2, 2024, this court
ordered this matter consolidated with LASC Case No. 20STCV45349, with the
present action as the lead case.

On June 10, 2024, this court
granted Defendant Carias motion for judgment on the pleadings without leave to
amend, as to the claims asserted against him in consolidated case Carter

v. Irani, LASC Case No.
20STCV45349.

Defendants City and Carias

filed the present motion to bifurcate trial on September 3, 2025.

Plaintiff filed an opposition

on September 10, 2025.

Analysis

I.

MOTION TO BIFURCATE

“The court, in furtherance of convenience or to avoid prejudice, or when separate trials will be conducive to expedition and economy, may order a separate trial of any cause of action . . . or of any separate issue” (Code Civ. Proc., § 1048, subd. (b).)

Additionally, “[t]he court may, when the convenience of witnesses, the ends of justice, or the economy and efficiency of handling the litigation would be promoted thereby, on motion of a party, after notice and hearing, make an order . . . that the trial of any issue or any part thereof shall precede the trial of any other issue or any part thereof in the case” (Code Civ. Proc., § 598.)

“It is within the discretion of the court to bifurcate issues or order separate trials of actions, such as for breach of contract and bad faith, and to determine the order in which those issues are to be decided.” (Royal Surplus Lines Ins. Co., Inc. v. Ranger Ins. Co. (2002) 100 Cal.App.4th 193, 205.) “The major objective of bifurcated trials is to expedite and simplify the presentation of evidence.” (Foreman & Clark Corp. v. Fallon (1971) 3 Cal.3d 875, 888.)

Defendants City of Los Angeles

and Carlos Carias (“Defendants”) seek bifurcation of trial on the sole remaining claim of Plaintiff Lakesha R. Carter (“Plaintiff”) for intentional infliction of emotional distress (“IIED”) into two phases: an initial phase to determine Defendants liability, and a second phase to determine Plaintiff’s compensatory and punitive damages, if any. (Motion at pp. 1–2.) Defendants argue that bifurcating trial in this manner will potentially save time, if no liability is found, and further that it will permit any liability determination to be made without the prejudicial impact of Plaintiff’s damages evidence. (Motion at pp. 5–7.)

Defendants' proposed

bifurcation of liability and damages determinations cannot be granted, because Plaintiff's sole remaining claim for IIED includes damages as an integral element of liability. The elements of an IIED claim are: "(1) defendant engaged in extreme and outrageous conduct (conduct so extreme as to exceed all bounds of decency in a civilized community) with the intent to cause, or with reckless disregard to the probability of causing, emotional distress; and (2) as a result, plaintiff suffered extreme or severe emotional distress." (Berry v. Frazier (2023) 90 Cal.App.5th 1258, 1273.) Defendants may not be liable simply for any damages resulting from outrageous conduct, but may only be liable for emotional distress that is extreme or severe, and which they actually caused. (CACI 1600.) The severity of Plaintiff's emotional distress, and thus a significant part of her damages claim, is instrumental to proving Defendants' liability.

Moreover, although Defendants argue that bifurcation in the manner suggestion will avoid prejudice to the trier of fact (Motion at p. 2), they make no showing that the character of the evidence to be given is likely to be prejudicial such that bifurcation is warranted.

Defendants are, however, entitled to preclusion of financial condition evidence for Defendant Carias under Civil Code § 3295, at least until certain findings are made.[1] That statute provides that:

The court shall, on application of any defendant, preclude the admission of evidence of that defendant's profits or financial condition until after the trier of fact returns a verdict for plaintiff awarding actual damages and finds that a defendant is guilty of malice, oppression, or fraud in accordance with Section 3294. Evidence of profit and financial condition shall be admissible only as to the defendant or defendants found to be liable to the plaintiff and to be guilty of malice, oppression, or fraud. Evidence of profit and financial condition shall be presented to the same trier of fact that found for the plaintiff and found one or more defendants guilty of malice, oppression, or fraud.

(Civ. Code § 3295, subd. (d).)

The language used by the above statute is mandatory, and codifies “the presumption that evidence of a defendant's wealth can induce factfinders to abandon their objectivity and return a verdict based on passion and prejudice.” (Las Palmas Associates v. Las Palmas Center Associates (1991) 235 Cal.App.3d 1220, 1241.)

The motion is therefore GRANTED in part, and evidence of Defendant Carlos Carias' profits or financial condition shall be excluded until after the trier of fact returns a verdict for plaintiff awarding actual damages and finds that a defendant is guilty of malice, oppression, or fraud in accordance with Section 3294. The motion is otherwise DENIED.

Superior Court of California

County of Los Angeles

Department 732

Lakesha

r. carter,

Plaintiff,

v.

CITY OF LOS ANGELES, et al.,

Defendants.

Case No.:

20STCV35418

Consolidated Case No.:

20STCV45349

Hearing Date: July 8, 2026

[TENTATIVE] RULING RE:

Defendants

City of Los Angeles and Carlos Carias' Motion to Bifurcate Trial

Defendants City of Los Angeles and Carlos

Carias' Motion to Bifurcate Trial is GRANTED in part, and evidence of Defendant Carlos Carias' profits or financial condition shall be excluded until after the trier of fact returns a verdict for plaintiff awarding actual damages and finds that a defendant is guilty of malice, oppression, or fraud in accordance with Section 3294. The motion is otherwise DENIED.

Defendants to give
notice.

Dated: July 8, 2026

Hon.

Richard S. Kemalyan

Judge
of the Superior Court

[1]

Defendant City of Los Angeles is not liable for punitive damages. (Gov. Code § 818.)